

Amendment No. 1 to HB1354

Farmer  
Signature of Sponsor

**AMEND Senate Bill No. 1225\***

**House Bill No. 1354**

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-11-611(c), is amended by designating the existing language as subdivision (c)(1) and adding the following as a new subdivision (c)(2):

(2)

(A) A person is presumed to have held a reasonable belief of imminent death or serious bodily injury to self if:

(i) The person uses force intended or likely to cause death or serious bodily injury against an individual who is committing or attempting to commit a human trafficking offense; and

(ii) The person using force is the victim of the human trafficking offense being committed or attempted by the individual.

(B) A person must prove the person's status as a victim of human trafficking by clear and convincing evidence. A person may provide clear and convincing evidence of the person's status as a victim of human trafficking through testimony.

SECTION 2. Tennessee Code Annotated, Section 39-11-611(d), is amended by deleting "subsection (c)" and substituting "subdivision (c)(1)".

SECTION 3. Tennessee Code Annotated, Section 39-11-611(a), is amended by adding the following as a new subdivision:

( ) "Human trafficking offense" means the commission of an act that would constitute the criminal offense of:

(A) Involuntary labor servitude, under § 39-13-307;

(B) Trafficking persons for forced labor or services, under § 39-13-308;

(C) Trafficking for commercial sex act, under § 39-13-309;

(D) Patronizing prostitution, under § 39-13-514, from a person who is younger than eighteen (18) years of age, has an intellectual disability, or is a law enforcement officer posing as a minor;

(E) Promoting prostitution, under § 39-13-515, of a person more than twelve (12) years of age but less than eighteen (18) years of age or a person with an intellectual disability; or

(F) Promoting the prostitution of a minor, under § 39-13-512;

SECTION 4. Tennessee Code Annotated, Section 40-11-153(a), is amended by deleting "or obstructing a highway" and substituting "or obstructing a highway or other passageway".

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.